

## **VerdictBridge Forecast - Risperdal Gynecomastia (Philadelphia)**

### **Plaintiff Profile**

- Age at Prescription: 15
- Drug: Risperdal (risperidone)
- Use: Off-label (behavioral or mood indication)
- Label Era: No gynecomastia warning
- Injury: Confirmed male breast growth (gynecomastia), surgical need
- Jurisdiction: Philadelphia Court of Common Pleas (PA)
- Damages Assumption: High (psych trauma, surgery, lifelong impact)

### **MSJ Tier: Tier 4**

"Verdict is Plausible - Trial path exists; strong causation and venue."

- PA permits failure-to-warn claims without FDA label change
- Off-label prescription to a minor elevates duty of care
- Label omission (re: gynecomastia) is material and known

### **Settlement Pressure Band: Severe**

"Red Band - Top Quartile Pressure"

- Philly has a long record of pro-plaintiff pharma jury results
- Notable Precedents:
  - Murray v. Janssen - \$8B punitive (later reduced to \$6M)

## **VerdictBridge Forecast - Risperdal Gynecomastia (Philadelphia)**

- Stange v. Janssen - \$2.5M compensatory
- Jurors are highly responsive to adolescent harm with corporate silence

### **Jury Verdict Forecast**

Plaintiff-Favorable Outcome Likelihood: 78-90%

- Label silence + off-label use + puberty disruption = powerful jury narrative
- Jury may infer reckless or profit-motivated suppression of risk
- Plaintiff stands to recover both compensatory and possible punitive damages

### **Defense Verdict Logic (Weakened in PA)**

Arguments:

- Gynecomastia is multifactorial
- Prescriber judgment
- Low risk profile in population

Counterpoints:

- Prolactin link is direct and documented
- Off-label use removes FDA shield
- Internal documents show risk awareness and delay in warnings

### **Evidence Linkage Diagram**

## **VerdictBridge Forecast - Risperdal Gynecomastia (Philadelphia)**

[Off-Label Rx in Minor]

-

[Label Silent on Gynecomastia Risk]

-

[Male Breast Growth -> Surgical + Psychological Harm]

-

[Philadelphia Court = Enhanced Duty to Warn]

-

[Trial Pathway: HIGH DAMAGES RISK]